

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

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BILL LIN, XIU JUAN LIN, and
YUAN Y ZHENG, ,
Plaintiff(s),

Index No.:
Plaintiff designates
QUEENS County
as place of trial CPLR 504 (3)

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE
OFFICER WING HAR (SHIELD 8243),

Defendant(s)

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To the above named Defendant(S)
The City of New York
100 Church Street
New York, NY 10007

Police Officer Wing Har
NYPD 109th Precinct
3705 Union St, Flushing, NY 11354

You are hereby summoned to answer the complaint in the action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorneys within 20 days after the service of this summons, exclusive of the day of service (of within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded herein.

Dated: New York, New York
March 10, 2014

/S/

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Attorney for Plaintiff
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/S/

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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	:
BILL LIN, XIU JUAN LIN, and	:
YUAN Y ZHENG,	:
	:
Plaintiffs,	:
	:
-against-	:
	:
	:
THE CITY OF NEW YORK, POLICE OFFICER	:
WING HAR (SHIELD 8243),	:
	:
Defendants.	:
-----X	

VERIFIED COMPLAINT

Plaintiffs Demand
Trial by Jury

Index #

PLAINTIFFS BILL LIN, XIU JUAN LIN, and YUAN Y ZHENG, by their Attorneys John S. Yong, Robert E. Brown, PC, and Daniel F. Lynch, for their complaint alleges as follows:

1. Plaintiff Bill Lin is an Twenty-Six (26) year old Asian-American male and was a resident of Queens County at the times of the wrongs committed against him, Plaintiff Xiu Juan Lin is a forty (40) year old Asian-American female and was a resident of Queens County at the times of the wrongs committed against her, and Plaintiff Yuan Y Zheng is a forty-six (46) year old Asian-American female and was a resident of Queens County at the times of the wrongs committed against her.

2. Upon information and belief, at all times hereinafter mentioned, defendant The City of New York [hereinafter "NYC"] is a municipal corporation existing under and by virtue of the laws, charters and statutes of the State of New York. Defendant Police Detective Wing Har [hereinafter "Har"], is a New York City Police Officer, and was so employed by the New York City Police Department at the time of the wrongs committed against Plaintiff. Har was assigned to the 109th Precinct, and his Shield Number is 8243. At all pertinent times, Har acted under color of State law, and with the express and implied permission and knowledge of defendant The City of New York and The New York City Police Department, and as an employee, was acting within the scope of his employment and in furtherance of the business of The City of New York, and The New York City Police Department. Suit is brought against defendant Har in his individual capacity.

PRELIMINARY FACTS

9. Plaintiffs have complied with all conditions precedent to commencing this action and, in particular, on or about February 28, 2013, within ninety (90) days after the claim upon which this action is based, Plaintiffs duly served upon the defendants Notices of Claim pursuant to and in full compliance with the provisions of § 50-e of the New York State General Municipal Law.

10. More than thirty (30) days have elapsed since the service of the Notice of Claim and adjustment or payment thereof has been rejected or refused by the defendants.

11. This action is being commenced within one (1) year and ninety (90) days after the happening of the event upon which this claim is based.

12. A statutory hearing of the Plaintiffs Bill Lin and Xiu Juan Lin pursuant to New York State General Municipal Law § 50-h was held on May 31, 2013, and the 50-h hearing as to Yuan Y Zheng was held on October 8, 2013.

STATEMENT OF FACTS

13. Plaintiff Bill Lin, Xiu Juan Lin and Yuan Y Zheng were falsely arrested, detained, and prosecuted by defendants The City of New York and Har on or about May 23, 2012 through and including December 12, 2012 and thereafter, at or near Holly Avenue, the 109th Precinct and the Criminal Courts Building in the County of Queens, City and State of New York. The arrests by defendants were made without cause or justification. Defendants did intentionally, wilfully and maliciously, wrongfully, unlawfully, and unjustifiably arrest and detain Plaintiffs and thereafter falsely and maliciously prosecute Plaintiffs.

14. On or about May 23, 2012, Plaintiffs were arrested and charged with Kidnapping and other related offense without probable cause or reasonable suspicion that they had committed any crime or offense. Plaintiffs were arrested based upon a fantastical story sold to the Police Officer by a female con artist who has stolen hundreds of thousands of dollars from Plaintiffs, their families and their friends. Plaintiffs were arrested in front of the home of Plaintiffs Bill Lin and Yuan Y Zheng and all Plaintiffs were taken away in handcuffs in front of their neighbors by Police Officer Har. The "kidnapping" was alleged to have taken place on during the day and nights of May 22, 2012 and May 23, 2012 when the "complainant", Plaintiffs and others were negotiating the return of some of the money stolen by "complainant" in an elaborate pyramid or ponzi scheme. The "complainant" spent the evening of May 22, 2012 in the room of her paramour and conversed via cellphone voice and text messages with her family in the US and in China throughout the negotiations. Plaintiffs informed P.O. Har that they did not "kidnap" "complainant", but rather she has defrauded Plaintiffs and others and all parties were negotiating the return of monies to Plaintiffs and others. These facts were easily confirmed had defendant Har engaged in any investigation whatsoever, talked to any of the other parties engaged in the negotiations or conducted any on-scene canvass of any of the locations where "complainant" alleged she was held against her will. The entire tale was a fantasy by a criminal concocted to avoid her own prosecution and Har failed to exercise any reasonable

law enforcement discretion to confirm that Plaintiffs had in fact committed no criminal act.

15. On or about May 23, 2012 while in police custody, Plaintiffs made multiple exculpatory statements regarding the events of the previous two days, and indeed no evidence connecting Plaintiffs to any crime existed whatsoever other than the fantastical story created by "complainant".

16. Plaintiffs were nevertheless arrested and charged with serious felony crimes, including a Class A Kidnapping felony that carries a Life Sentence. Plaintiffs were arraigned on May 25, 2012 and remanded in custody without bail. Defendant Har initiated and pursued charges against Plaintiffs, despite that Plaintiffs had committed no criminal act, by arresting Plaintiffs, processing Plaintiffs, by the swearing and filing of a false criminal complaint, and by any and all participation in the malicious prosecution of Plaintiffs. Defendants participated in the criminal prosecution and knew or should have known that the charges against Plaintiffs were false. Plaintiffs were held without bail, and remained in jail until June 13, 2012 when the District Attorney of Queens County consented to bail when exculpatory evidence was presented. Thus, Plaintiffs were remanded and were confined to jail for twenty-one (21) days. Plaintiffs provided the District Attorney with a copy of the pyramid scheme documents perpetrated by "complainant", witnesses to the fraud, and a photograph of

"complainant" partying in Atlantic City a couple of days after the arrest of Plaintiffs. Indeed, "complainant", her daughter and her son essentially admitted to participating in the scheme to prosecutors. All of this exculpatory evidence was easily obtainable through investigation and was fully available to defendant P.O. Har at the time that he falsely arrested and prosecuted Plaintiffs. Plaintiffs made four further court appearances before all criminal charges against Plaintiffs were ultimately dismissed upon the motion of the District Attorney of Queens County.

17. The conduct of the defendants in falsely arresting and detaining Plaintiffs proximately caused Plaintiffs serious and permanent physical and emotional injury, pain and suffering, mental anguish, humiliation and embarrassment.

18. All conduct of the defendants herein was gross, willful, wanton, intentional, purposeful, and reckless, negligent and careless.

Monell Claim

19. At all times material to this complaint, the defendant NYC, acting through NYCPD, had in effect de facto policies, practices, and customs that were a direct and proximate

cause of the unconstitutional conduct of defendant Har. These de facto policies, practices and customs include, inter alia: the failure to properly screen, supervise, discipline, transfer, counsel, and/or otherwise control police officers engaged in the excessive and unjustified use of force, particularly those police officers who are repeatedly accused of such acts; and, the police code of silence wherein police officers regularly cover-up police use of excessive and unjustified force by telling false and incomplete stories, or by failing to report the use of excessive and unjustified force by police officers.

20. The policy, practice and custom of failing to screen, discipline, supervise, counsel, transfer, and/or control police officers, is evidenced, inter alia, by the following: the increase in the number of allegations of excessive force complaints filed with the Civilian Complaint Review Board [hereinafter "CCRB"]; that in 1996, only 52 officers out of a force of 38,000 -- the largest police department in the country -- were punished because of action taken by the CCRB; that from July, 1993, to July, 1997, only one officer has been dismissed for brutality or other forms of misconduct which were investigated by the CCRB; that since at least 1984 defendant NYC has been on notice that their training of police officers has been inadequate and that police officers joining the force, including defendants Doe and Roe, were disproportionately involved in misconduct and abuse, particularly involving excessive force and brutality (see, e.g., Mayor's

Advisory Committee on Police Management and Personnel Policy, Final Report, February 24, 1987); that in 1990 the Office of Special Prosecutor, which investigated charges of police corruption, was abolished; that The Commission Report of the Commission to Investigate Allegations of Police Corruption and the Anti-Corruption Procedures of the Police Department ("Mollen Commission Report"), dated July 7, 1994, states "As important as the possible extent of brutality, is the extent of brutality tolerance we found throughout the Department. While the tolerance for brutality arises from the same set of police attitudes as the tolerance for corruption, there is an important difference. Unlike serious corruption, which most cops outwardly tolerate but inwardly deplore and resent, officers seem fairly tolerant -- both outwardly and inwardly -- of occasional police brutality. ... [M]any do not seem to believe that anything is really wrong with a few blows and bruises now and then. Even officers who would never take a free cup of coffee, seem to tolerate what they believe is a little 'street justice.' An excessive use of fists to face, nightsticks to ribs, and knees to groin are seen as the realities of policing."

21. On information and belief, the defendant NYC, and NYCPD have failed to effectively screen, hire, train, supervise and discipline their police officers, including the defendant police officer herein, for their propensity for violence, including excessive and unjustified force and restraint, lack of truthfulness, and for their failure to protect citizens from

unconstitutional conduct of other police officers, thereby permitting and allowing the defendant police officer herein to be in a position to assault, beat and/or excessively and unjustifiably restrain the Plaintiff and to otherwise cause him injury and violate his federal and state constitutional rights.

22. On information and belief, defendants Har has been the subject of prior civilian and departmental complaints of misconduct that gave notice to, or should have given notice to, the defendants that defendant Har was likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by Plaintiff herein.

23. On information and belief, the defendant NYC, and NYCPD, maintained an inadequate structure for risk containment and stress management relative to its police officers, and failed to create proper means of containing such risk and managing such stress. Inter alia, the structure was deficient, at the time of selection of police officers and thereafter during their employment, in its ability to evaluate and exchange information within the command structure about the performance of individual police officers; in its training of supervisory personnel to effectively and adequately evaluate performance of an officer; and in its ability to otherwise put the command structure on notice that an individual or individuals were at significant levels of risk to the public at large or to specific segments thereof. The

effect of this was to permit police officers to function at levels of significant and substantial risk to the public.

24. As a result of the foregoing conscious policies, practices, customs and/or usages, defendant NYC, and NYCPD, have permitted and allowed the employment and retention of individuals as police officers whose individual circumstances place the public or segments thereof at substantial risk of being the victims of violent behavior. Such policies, practices, customs and/or usages are a direct and proximate cause of the conduct alleged herein and are otherwise a direct and proximate cause of the injuries to Plaintiff herein.

25. As a direct and proximate result of the defendant's wrongful policies, practices, customs and/or usages complained of herein, Plaintiff has suffered severe physical, mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment, both personally and professionally.

26. Defendant NYC is additionally liable under the legal principle of Respondeat Superior, in that defendant Har was on duty and was acting in the course and scope of her duties and employment as a New York City Police Officer during the false arrest, detention, and assault upon Plaintiff.

FIRST CLAIM FOR RELIEF

42 U.S.C. § 1983

27. Plaintiffs repeats and realleges every assertion contained in paragraphs "1" through "26" of this Complaint as if recited at length herein.

28. By the aforesaid acts, defendants have violated plaintiffs' right to the equal protection of laws under the Fourteenth Amendment to the United States Constitution, thereby giving rise to a cause of action pursuant to 42 U.S.C. § 1983.

29. The conduct and actions of defendant Har, and defendant NYC, acting under color of law, in falsely arresting, detaining, and prosecuting Plaintiffs, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the Plaintiffs' Constitutional rights as guaranteed under 42 U.S.C. § 1983, and the Fourteenth Amendment to the United States Constitution. The above-described actions and omissions engaged in under color of state law by the defendants, including defendant NYC, sued as a person within the meaning of Title 42 U.S.C. § 1983, et seq., deprived the plaintiffs of rights including, but not limited to, rights under the First Amendment

guaranteeing freedom expression and association, the Fourth Amendment guaranteeing protection against unlawful seizure of his person, the Fifth and Fourteenth Amendments guaranteeing due process and equal protection under the law, and the Eighth Amendment guaranteeing protection from cruel and unusual punishment, and Title 42 U.S.C. 1983, et seq.

30. By reason of the Constitutional violations by defendants, Plaintiffs have been damaged as set forth above.

SECOND CLAIM FOR RELIEF

New York Constitution Art. I, § 11

31. Plaintiffs repeats and realleges every assertion contained in paragraphs "1" through "30" of this Complaint as if recited at length herein.

32. By the aforesaid acts, defendants have violated plaintiffs' right to the equal protection of laws under Article I, § 11 of the New York State Constitution, thereby giving rise to a cause of action pursuant to that Article.

33. The conduct and actions of defendant Har, and defendant NYC, acting under color of law, in falsely arresting, detaining, and prosecuting Plaintiffs, was done intentionally,

maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the Plaintiffs' Constitutional rights as guaranteed under laws and Constitution of the State of New York. The above-described actions and omissions engaged in under color of state law by the defendants, including defendant NYC, sued as a person within the meaning of Article I, § 11, deprived the plaintiffs of rights, including but not limited to, rights under Article I, § 8, 9, guaranteeing freedom of expression and association, Article I, § 12, guaranteeing protection against unlawful seizure of the person, Article I, § 11 guaranteeing due process and equal protection under the law, and Article I, § 5 guaranteeing protection from cruel and unusual punishment.

34. By reason of the Constitutional violations by defendants, Plaintiffs have been damaged as set forth above.

THIRD CLAIM FOR RELIEF

Negligent Hiring, Training and Supervision

35. Plaintiffs repeat and realleges every assertion contained in paragraphs "1" through "34" of this Complaint as if recited at length herein.

36. The above-described injuries suffered by the Plaintiffs are the proximate result of the negligence of the defendant NYC, and NYCPD, in that the defendant NYC, and NYCPD failed to exercise reasonable care in the hiring, employment, supervision, and training of its employees.

37. The defendant NYC, and NYCPD failed to properly train defendant Har as to the appropriate investigative techniques required to assess criminal liability. Plaintiffs offered airtight exculpatory evidence (which later proved their complete innocence) and Har was untrained, unprepared and unequipped to properly investigate. Additionally, Defendants NYC and NYCPD had, or should have had, knowledge of the vicious and violent tendencies of its employees, including Har. Defendant NYC, and NYCPD knew or should have known of the unlawful actions of Har through actual and constructive notice of their unlawful activities, including, but not limited to those allegations as set forth in paragraphs "19", "20", "21," "22," "23," "24," "25," and "26,". Defendant NYC, and NYCPD failed to exercise reasonable care by retaining and not terminating the employment of Har, or taking other appropriate corrective action. The occurrences complained of herein were due to the negligence and recklessness of the defendant NYC, and NYCPD.

38. By reason of the tortious conduct of defendants, Plaintiff has been damaged as set forth above.

FOURTH CLAIM FOR RELIEF

False Arrest and Imprisonment

39. Plaintiffs repeats and realleges every assertion contained in paragraphs "1" through "38" of this Complaint as if recited at length herein.

40. By the aforesaid acts, defendant Har unlawfully and unjustifiably arrested and detained Plaintiffs without any lawful cause whatsoever. Defendants acted willfully, unlawfully, maliciously, recklessly, and negligently in arresting and detaining Plaintiffs, despite Plaintiffs' innocence, and utilized the criminal justice system to prosecute Plaintiffs in order to cover up the violation of Plaintiffs' rights by Har.

41. By reason of the tortuous conduct of defendants, Plaintiff has been damaged as set forth above.

SIXTH CLAIM FOR RELIEF

Malicious Prosecution

42. Plaintiffs repeats and realleges every assertion contained in paragraphs "1" through "41" of this Complaint as if recited at length herein.

43. By virtue of the aforesaid acts, defendants, their agents, servants, employees and/or representatives, maliciously, and unjustifiably prosecuted Plaintiffs through the use of knowing and intentional perjurious information, documents and testimony. The prosecution of Plaintiffs by defendants was malicious and without just or probable cause or reason.

44. The defendant Har, knowing that said charges were false and/or lacked probable cause, continued to prosecute the plaintiffs by acts including, but not limited to, swearing of a felony complaint, failure to investigate Plaintiffs' airtight exculpatory evidence, and failure to secure readily available documentary and testimonial evidence that would have exonerated Plaintiffs, and ultimately did exonerate Plaintiff but only after they had spent 21 days in jail. As a result thereof, the plaintiffs were caused to expend various sums of money to defend himself against the false accusations of and/or malicious prosecution by the defendants, their agents, servants, employees and/or representatives, and suffered the injuries set forth above, and additionally were caused to travel from their homes, and lose substantial employment time while attending six (6) court dates in this case. All charges against Plaintiffs were dismissed affirmatively by motion of the District Attorney because Plaintiffs were demonstrably and obviously innocent.

45. For all claims arising under New York State Law,

defendants are jointly and severally liable to the plaintiffs inasmuch as this action arises out of the exceptions set forth in § 1602, subdivisions 5, 7, and 11 of the Civil Practice Law and Rules.

WHEREFORE, Plaintiffs BILL LIN, XIU JUAN LIN, and YUAN Y ZHENG respectfully requests judgment upon all causes of action against defendants as follows:

1. With respect to defendant The City of New York:
 - (a) declaratory judgment declaring that defendant NYC has violated the aforesaid statutes and constitutions;
 - (b) restitution to plaintiff of his rights, privileges, benefits and income (including back pay and front pay) which would have been received by him but for the defendants' unlawful, wrongful, tortuous, and unconstitutional conduct;
 - c) compensatory damages in an amount to be determined by the court and jury;
 - (d) punitive damages in an amount to be determined by the court and jury;
 - (e) reasonable attorney's fees, disbursements and costs of this action, pursuant to 42 U.S.C. § 1988;
 - (f) all legal and statutory interest on sums awarded;
 - (g) such other and further relief as this honorable

court may deem just, proper and equitable.

2. With respect to defendant Har:

- (a) declaratory judgment declaring that defendants have violated the aforesaid statutes and constitutions;
- (b) restitution to plaintiff of his rights, privileges, benefits and income (including back pay and front pay) which would have been received by him but for defendants' unlawful, wrongful, tortuous, and unconstitutional conduct;
- (c) compensatory damages in an amount to be determined by the court and jury;
- (d) punitive damages in an amount to be determined by the court and jury;
- (e) reasonable attorney's fees, disbursements and costs of this action, pursuant to 42 U.S.C. § 1988;
- (f) all legal and statutory interest on sums awarded;
- (g) such other and further relief as this honorable court may deem just, proper and equitable.

DATED: New York, New York
March 10, 2014

Respectfully Submitted
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ATTORNEYS' VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) s.s.

John S. Yong, Robert E. Brown, PC, and Daniel F. Lynch, attorneys duly admitted to practice law in the State of New York, hereby affirms, upon information and belief, pursuant to C.P.L.R. § 2106, as follows:

That we are counsel to the PLAINTIFFS for the within action, and I have read the foregoing Complaint. We know the contents therein, the same is true to our knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters we believe to be true. The grounds for our beliefs are our own investigations, interviews and correspondence with the Plaintiffs, Plaintiffs' testimony under oath at the 50-h hearing, and a review of the documents in the file.

That this affirmation is submitted by Plaintiffs' attorneys since all three Plaintiffs do not reside in the County of New York where we each maintain my offices.

DATED: NEW YORK, NEW YORK
March 10, 2014

_____/S/
JOHN S. YONG

_____/S/
ROBERT E. BROWN, PC

_____/S/
DANIEL F. LYNCH